Terms & Conditions

1. DEFINITIONS

In this Contract, the following terms have the meanings set out below:
Telecom Networks – Thistle Networks Limited t/a Telecom Networks, 7 East Kilbride Road, Rutherglen, Glasgow, G74 5EA, registered in Scotland, Company Registration Number SC386994.
Agreement – the relevant Product Agreement(s) and product schedule entered into between the Customer and Telecom Networks.
Charges – any sums payable to Telecom Networks under this Agreement for Services provided and signed for.
Equipment – equipment (including software) placed by Telecom Networks at the Premises to provide the Service.
Call – a voice, video, text, or other communication transmitted via the Service.
Call Diversion – diverting incoming Calls to another UK fixed line or mobile number, in accordance with the Service Charter.
Conditions – these Terms & Conditions.
Contract – begins on the Service "go live" date, i.e., the first active date on which the Customer is billed. The Signed Order Form Agreement records the request date.
Customer – the person, business, or organisation with whom Telecom Networks contracts to provide the Service.
Customer Equipment – equipment not supplied by Telecom Networks that the Customer uses or plans to use with the Service.
IP Address – an IP address allocated to the Customer for use of one or more products.
Network – the telecommunications network operated by a Network Operator, through which Telecom Networks provides resale services.
Network Operator – the organisation providing the underlying telecommunications network.
Minimum Period – the first 12 months of the Service (or any other period shown in the signed order).
Premises – the location at which Telecom Networks provides the Service.
Service – the facility to make or receive a Call (or both) and any related products agreed in the Customer's signed order.
Service Failure – a continuous, total loss of the Service or related functionality.
BT / Openreach – installations and repairs are carried out via Openreach, subject to their service levels and lead times.

2. PROVIDING THE SERVICE

2.1 Telecom Networks will provide the Service by the agreed date. Occasionally, a site survey may determine the final start date.
2.2 For operational reasons, Telecom Networks may change codes or numbers, or temporarily interrupt the Service. Telecom Networks will restore the Service as quickly as possible.
2.3 The Customer must follow any reasonable instructions issued by Telecom Networks regarding the Service.
2.4 Telecom Networks may rely on instructions from a person reasonably believed to act with the Customer's authority.

3. DIRECTORY ENTRIES

3.1 The Service includes a telephone number, which will be listed in public directories unless the Customer requests otherwise. This may include online directories.
3.2 Special directory entries may be arranged at an additional charge.
3.3 The Customer does not own the number and cannot sell or transfer it independently.
3.4 If transferring a line from another provider, the Customer must advise whether existing directory entries should be retained. Charges for continued listings will apply as passed from the Network Operator.

4. MANAGING THE SERVICE

4.1 Fault reports will be managed according to the Service provided. These may require response from third-party providers outwith the customers network i.e. Openreach, to which the third-party lead times would then apply. Details can be provided upon request.
4.2 Customers are initially asked to complete First Line Checks, which are guided by our customer service advisors to help identify possible reconnection issues. If these checks are not carried out and an engineer is requested, but the fault is found to be caused by the customer's own equipment, the visit will be treated as chargeable classified as "No Fault Found" or "Fault on Customer Premises." This may include issues such as internal cabling.
Telecom Networks makes every effort to ensure that all First Line Checks are completed before arranging an engineer visit to avoid unnecessary charges. However, we rely on the information provided verbally by the customer during the call. All calls are recorded to protect both parties in case of any dispute.
Before raising a fault with Openreach, our service agent will confirm that you, as the customer, accept that call-out charges will apply if no fault is found. Charges vary depending on the type of fault and engineer required, starting from £85 per hour. Aborted visit charge £180.00
4.3 Work outside agreed hours incurs additional charges.

5. CALL MONITORING

Telecom Networks records Calls for training, quality monitoring, and regulatory compliance.

6. ACCESS TO AND PREPARING PREMISES

6.1 The Customer must prepare the Premises per instructions and provide reasonable access.
6.2 The Customer is responsible for reinstating items and decoration after work.
6.3 Permission must be obtained for any work on third-party land.
6.4 Openreach personnel will observe reasonable safety and security measures; the Customer must do the same.
6.5 The Customer must provide suitable conditions for equipment, including continuous mains power and connection points.
6.6 The Customer must take reasonable care of all Telecom Networks and/or Openreach equipment. Damage not caused by fair wear and tear, or Openreach/Telecom Networks, will be charged to the Customer.

7. CUSTOMER EQUIPMENT

7.1 Connecting Customer Equipment to the network requires Telecom Networks' permission.
7.2 Customer Equipment must be technically compatible, safe, and compliant with relevant standards and laws.
7.3 All equipment provided by Telecom Networks remains its property and must be returned in working order at the end of the contract. Failure to return items (e.g. Ethernet broadband routers) may incur replacement charges (upwards of £300).
7.4 All hardware supplied by Telecom Networks is covered by the applicable manufacturer's warranty. Following expiry of the warranty period, Telecom Networks accepts no liability for repair or replacement of the equipment. Any damage to equipment, regardless of cause, will result in chargeable repair or replacement costs.

8. MISUSE OF SERVICE

The Service must not be used for offensive, indecent, menacing, nuisance, hoax, fraudulent, or criminal purposes. The Customer must take reasonable steps to prevent misuse and indemnifies Telecom Networks for any related claims. If a claim
is made against Telecom Networks from a supplier/service provider because the Service is misused in this way, the Customer must reimburse Telecom Networks in respect of any sums Telecom Networks is obliged to pay.

9. CHARGES AND DEPOSITS

9.1 The Customer must pay all charges per the order form.
9.2 Rental charges are invoiced monthly in advance: call charges in arrears.
9.3 Invoices may be issued electronically; a one-off invoice may apply for additional services or equipment.
9.4 Charges apply whether the Service is used by the Customer or another party.

9.5 Deposits or guarantees may be requested for future payments.
9.6 All charges are subject to VAT at the prevailing rate.
9.7 Customers who do not pay by Direct Debit will incur a £10.00 monthly administration fee to cover the cost of manual invoicing and payment processing.
9.8 It is the customer's responsibility to review each monthly invoice upon receipt and notify Telecom Networks in writing (by email or letter) of any billing discrepancies, disputed charges, or services that should have been cancelled.
9.9 At the end of the agreed contractual term, the customer will enter the renewal phase. If the customer does not renew the term, the licence charges for any UCaaS telephone system will automatically increase by 20%. Where a new term is agreed, pricing will be aligned to the rates set out in the newly signed order.
Where an error is identified and verified, Telecom Networks will issue a credit or refund for a maximum of the previous three (3) months of incorrect billing, provided sufficient evidence or a copy of the original cancellation request is supplied.
9.10 Backdated Charges; where a service has not been billed to the end user in error, and it is confirmed that (a) the service has been used by the end user, and (b) Telecom Networks has been invoiced by the supplier for such service, Telecom Networks reserves the right to apply and recover the relevant charges. Such charges may be backdated and invoiced to the end user for a period of up to 12 months from the date the billing discrepancy is identified.

10. CANCELLATION AND TERMINATION

10.1 The Customer may cancel prior to Service provision but must pay for work already undertaken.
10.2 Termination:
By the Customer: 90 days' written notice.
By Telecom Networks: 30 days' written notice.
10.3 Early termination during the Minimum Period incurs fees equal to remaining contract value. Broadband circuits may have one-off cease charges (£45). Telecom Networks absorb activation fees (£45).
10.4 Minimum contract term is 12 months unless stated otherwise.
10.5 Any contract signed is a non-coterminous contract, any services added after the date of original contract start date will extend the end date of that product past the end of the whole contract terms. Should a product be added the customer will be issued clear and unambiguous communications in respect of non-coterminous contract end dates.

11. BREACH OF CONTRACT

11.1 Telecom Networks may suspend or terminate the Service without notice if:
The Customer breaches this Contract and does not remedy it within a reasonable time.
The Service is misused (see Section 8).
Bankruptcy, insolvency, liquidation, or similar events occur.
11.2 Non-payment may result in service restriction after seven days, with late fees (£10). Telecom Networks encourages communication in case of financial difficulty.

12. LIMITS OF LIABILITY

12.1 Telecom Networks cannot guarantee a fault-free Service but accepts liability for late Service provision or repair.
12.2 Losses that are unforeseeable, including business revenue, profit, or data loss, are excluded unless caused by negligence.
12.3 Liability is capped at £1,000 per 12-month period.
12.4 Each liability clause is severable; unenforceable clauses do not affect others.

13. FORCE MAJEURE

Telecom Networks is not liable for events beyond reasonable control (e.g., network outages, cyber incidents, natural disasters).
Reasonable mitigation will be attempted (loan equipment, Call Diversion).

14. DISPUTE RESOLUTION

Telecom Networks will attempt to resolve disputes amicably. If unresolved, the Customer may escalate to a recognised dispute resolution service.

15. CHANGES TO TERMS

15.1 Telecom Networks may update these Terms with 30 days' notice, including via email.
15.2 Customers may request the current version of Terms at any time.

16. TRANSFER OF CONTRACT

The Customer may not transfer the Contract without Telecom Networks' consent. Ownership transfer of services is possible only with agreement and new service documentation. If the customer intends to sell their business, then the existing contract can be passed to the new owners of the business only if all parties consent, if the new owners do not want to take ownership of the existing contract, then the old owner is responsible for all of the termination fees and cease charges involved. The number cannot be transferred to the new company if there is an active contract still in place. To avoid loss of service Telecom Networks suggests that the new owner signs for the transfer of ownership of the services and signs a new service agreement in the new company name and a new direct debit in place prior to any numbers been exchanged between companies.

17. THIRD-PARTY RIGHTS

No third-party may enforce any term of this Contract (Contracts (Rights of Third Parties) Act 1999).

18. NOTICES

Notices must be sent:
To Telecom Networks: address on the bill or any updated address provided.
To the Customer: invoice address, Premises address, or registered office (if a company).

19. SERVICE CHARTER

19.1 Telecom Networks guarantees:
Service provision by the agreed date.
Fault repair per selected Service level.
No accidental disconnection.
Keeping agreed appointments.
19.2 Call Diversion:
Incoming Calls may be diverted to another UK number upon request.
Mobile numbers: callers incur no extra cost; the Customer pays for diverted calls.
19.3 Compensation:
Fixed rate compensation applies only for Service rental costs, per Price List, limited to 10 days per line.
19.4 Claims must be made within one month, via info@telecomnetworks.co.uk.

Acknowledgement

Full Name

Date

☐ **Please tick to confirm you have read the above Terms & Conditions**